

Application in a Proceeding Cover Sheet

In the Federal Circuit and Family Court of Australia

File number	NCC3896/2023
Filed at	NEWCASTLE
Filed on	Friday 31/05/2024 11:42 AM
Presiding Judicial Officer	Judicial Registrar Furner
Court location	Via Virtual Recorder; Web Conference
Court date	Tuesday 23/07/2024
Time	11:30 AM
Type of hearing	Directions Hearing

The following questions have been answered online for the attached application

Filed on behalf of: The Applicant

Prepared by: **DELANEY ROBERTS FAMILY
LAWYERS**

Lawyer's code: **ROB5334090**

Name of law firm: **DELANEY ROBERTS FAMILY LAWYERS**

Address for service in Australia: **Telstra Civic Suite 1, Level 2, 317 Hunter Street,**

Suburb: **NEWCASTLE**

State: **NSW**

Postcode: **2300**

Email:

Phone:

Mobile:

The orders sought

Order(s) sought

☒ Financial

☒ Procedural

Urgency

Are you seeking orders for urgent consideration?

No

Parties

Applicant 1

Name

HEATHER ANNE COOKE

Gender

Female



Date of birth	31/7/1978
Country of birth	Australia
Residential address	Address not provided or unknown
ATSI origin	No

Respondent 1

Name	STEPHEN CHRISTOPHER COOKE
Gender	Male
Date of birth	27/10/1981
Country of birth	Canada
Residential address	Address not provided or unknown
ATSI origin	No



Application in a Proceeding

Federal Circuit and Family Court of Australia (Family Law) Rules 2021 - CHAPTER 5

Federal Circuit and Family Court of Australia (Division 2) (General Federal Law) Rules 2021 - CHAPTER 1, PART 4, DIVISION 1

Please type or print clearly and mark [X] all boxes that apply. Attach extra pages if you need more space to answer any questions.

Filed in:

- ☒ Federal Circuit and Family Court of Australia
☐ Family Court of Western Australia
☐ Other (specify) _____

Type of proceedings:

- ☒ Family law proceedings
☐ Migration proceedings
☐ General federal law proceedings
☐ Other (specify) _____

Filed on behalf of:

Full name Heather Anne Cooke

Client ID _____

File number / appeal number

NCC3896/2023

Filed at

Filed on

31 MAY 2022Court location 61 Bolton Street, Newcastle, NSW 2300

Court date

Time

IMPORTANT: Information for respondents to the application is on page 4.

Part A About the parties

1 APPLICANT 1

Family name as used now

Cooke

Given names

Heather Anne

APPLICANT 2

Family name as used now

Given names

2 What is your contact address (address for service) in Australia? If you give a lawyer's address, include the name of the law firm.

Delaney Roberts Family Lawyers
274 Brunner Road, AdamstownState NSW Postcode 2289Phone 02 4952 3901Lawyer's code : ROB5334090Email: aroberts@delaneyroberts.com.au

RESPONDENT 1

Family name as used now

Cooke

Given names

Stephen Christopher

RESPONDENT 2

Family name as used now

Given names

Respondent's address

Ramsden Family Law
6/15 Castlereagh Street, SydneyState NSW Postcode 2000Phone 1300 749 709Email contact @ramsdenslaw.com.au

If there is a second applicant or second respondent attach a separate sheet answering this question for Applicant 2/Respondent 2.



Part B About the independent children's lawyer (if appointed)

3 Independent children's lawyer family name Given names

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4 The contact address (address for service) in Australia for the independent children's lawyer is:

State	Postcode
Phone	
Email	
Lawyer's code	

Part C About the orders you are seeking – family law proceedings only

**If you are seeking interlocutory orders in family law proceedings, complete this Part.
If you are seeking interlocutory orders in migration or general federal law proceedings, skip this Part and complete Part D.**

5 What type of orders are you seeking? Mark [X] all boxes that apply.

- | | |
|---|--|
| ☐ Interlocutory (parenting orders) | ☒ Interlocutory (financial orders) |
| ☒ Procedural | ☐ Other (specify) _____ |

Do you want this application to be dealt with in the absence of the parties in accordance with Part 5.3 of the Family Law Rules?

☐ Yes – see the notes below

☒ No

Notes

- a) If the respondent objects to the application being determined in the absence of the parties you still must attend the court.
- b) If the application is to be heard in the absence of the parties each party must file at least 2 days before the hearing a list of documents to be read by the Court and a supporting submission (see rule 5.15 of the Family Law Rules).
- c) An enforcement hearing cannot be held in the absence of the parties.



Part D The orders you are seeking

- 6 State the interlocutory orders that you are seeking.

[PLEASE NUMBER EACH ORDER SOUGHT]

1. That in regard to effect the sale of 1/213 Morgan Street, Merewether ("the Merewether property"):
 - (a) Robinson Property of 77 Glebe Road (cnr Union St), The Junction NSW 2291 is appointed to act as the real estate agent ("the Agent"); and
 - (b) Kent Conveyancing of 2/102 Tudor Street, Hamilton NSW 2303 is appointed to act as the conveyancer ("the Conveyancer").
2. That the Applicant Wife provides a copy of these Orders and the Court Orders dated 11 April 2024 ("the April Orders") to the Agent and the Conveyancer.
3. That within five (5) days of these Orders the Respondent Husband instructs the Agent to schedule cleaners to clean the Merewether property at the earliest availability and the Respondent Husband is solely responsible for those costs.
4. That within seven (7) days of these Orders the Respondent Husband attends to the following payments:
 - (a) \$2,650.00 to Caslick Coatings in payment of their invoice dated 18 May 2024;
 - (b) \$210.00 to Armstrong Property Maintenance in payment of their invoice dated 21 May 2024;
 - (c) \$550.00 to the Applicant Wife in reimbursement of her initial payment to Caslick Coatings;
 and the Respondent Husband must provide the Applicant Wife with copies of the payment remittances within eight (8) days of these Orders.
5. That Order 4 of the April Orders be replaced with *"That pending the sale of the Merewether property, the Applicant Wife shall pay all costs in relation to the Merewether property as and when they fall due, including home loan repayments, land rates, water rates, utilities, building insurance, and any costs of repairs as agreed between the parties in writing with 50% of the costs to be reimbursed by the Respondent Husband to the Applicant Wife from his \$200,000 interim property settlement as specified in Order 2 of the April Orders."*
6. That within seven (7) days of these Orders, the parties do all acts and sign all documents necessary with Westpac Banking Corporation to apply for "Financial hardship assistance" in respect of the Westpac Home Loans (BSB 037 173 account number 21-6802, BSB 037 173 account number 25-7671 and BSB 037 173 account number 25-7778) requesting that the loan repayments are paused until the Merewether property is sold.
7. That Order 7 of the April Orders be replaced with *"Pending sale of the Merewether property or until the Respondent Husband obtains employment, whichever shall occur first, the Applicant Wife is to pay interim Spousal Maintenance in the sum of \$500.00 per week."*
8. That the Respondent Husband pay the Applicant Wife's costs on an indemnity basis.

Part E Certification

I certify that to the best of my knowledge and information, the orders sought in this application are supported by evidence.

Part F Signature of applicant or lawyer

Signed	Date
	31/05/2024

This application was signed by ☒ the applicant/s ☐ lawyer for the applicant/s

This application was prepared by ☐ applicant/s ☒ lawyer

Tayleh Soames

ROB5334090

PRINT NAME AND LAWYER'S CODE



Please go to page 4 for the Important Notices to the Respondent/s

Important Notices to the Respondent/s

You should seek legal advice about this application.

For all family law applications

If you oppose the orders sought in this application or want the Court to make different orders **you must:**

- file with the Court a *Response to an Application in a Proceeding*; and
- serve a copy of the documents filed on each other party not less than 2 days before the Court date shown on page 1 of this form.

You must attend at court on the date shown on page 1 of this form, unless you agree with the applicant's request that the Court determine the application in the absence of the parties. If you object to the applicant's request, you must immediately notify the Court and the other party in writing, telling them of your objection.

If you are required to attend and you do not attend, orders may be made in your absence.

If the application is to be determined in the absence of the parties each party must file at least 2 days before the hearing a list of documents to be read by the court and a supporting submission (see rule 5.15 of the Family Law Rules).

